



File No.: EXP202300016

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 03/01/2023, a document was submitted to this Agency by A.A.A. (hereinafter, the complainant), in which a complaint is made against KENAI MEDIA, S.L. with NIF B67684514 (hereinafter, KENAI), for a possible breach of personal data protection regulations.

The reasons for the complaint are as follows:

“Good morning,

I am writing because a few days ago a friend called me to alert me that I appeared in a video on an adult content website. After confirming that it was indeed me, I discovered that the video appeared on several different sites. I wrote to all of them requesting the removal of the video, and apparently, they are pending review and cannot currently be seen on the sites, although the links are still active. This morning my friend called me again because he found the video on the server, a Spanish site that supposedly links it to international ones.

In the video (...), (...).

The video can be located by searching for "(...)" on the internet, but if they change the name, it will be very difficult to locate it again because there are millions of videos. (...)

I am attaching some websites where I found the video, the websites that responded to my messages, the links to the page where I still appear, and a screenshot of the conversation. ***URL.1”

Along with the complaint, the following documentation is provided:

- Screenshot of a sequence from the video in question published on the website ***URL.1. The description of the video states the following:

“(...)”

- Screenshot of the website ***URL.2 where the phrase “video is unavailable pending review” appears.
- Screenshot of the website ***URL.3 where the phrase “video is unavailable pending review” appears.
- Screenshot of the website ***URL.4 where the phrase “This video has been flagged for review” appears.

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SECOND: On 03/01/2023, this Agency carried out the following verifications:

- At URL ***URL.5 it states (unofficial translation from English): “This video has been flagged for review.”

- At URL ***URL.6 it states (unofficial translation from English): “Video unavailable pending review.”

- At URL ***URL.7 it states (unofficial translation from English): “Video unavailable pending review.”

- At URL ***URL.1 there is a sequence of a pornographic video with the following description:

“(...)”.

THIRD: On 04/01/2023, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) On 04/01/2023, this Agency sent an urgent removal order to the data controller KENAI, regarding the dissemination of the reported video published at URL ***URL.1. According to the Privacy Policy of

the mentioned website, this legal entity is responsible for the processing of personal data carried out therein.

The acknowledgment of receipt of this order is dated 11/01/2023.

2) On 11/01/2023, this Agency received, with entry registration number ***REFERENCIA.1, a response from KENAI stating:

"We have proceeded to remove the requested scene and clarify that we have all the relevant authorizations signed by the person making the complaint at your disposal. We are responding via this means because we have not been able to find another way."

3) On 12/01/2023, this Agency received a new document from KENAI, with entry registration number ***REFERENCIA.2, in which the following documentation is provided:

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3/18

- A document named "****DOCUMENTO.1" that includes a digitization of the ID of B.B.B. and a second page with the following content: "(...)", attached with the signature.

- A document named "****DOCUMENTO.2" that stores a digitization of the ID of A.A.A. (claimant) and a text with the following content: "(...)", attached with the signature.

- A document named "****DOCUMENTO.3" with the following content:

☐ A contract signed by the parties C.C.C. (***NIF.1) and D.D.D., representing INTERSELECCION SL (hereinafter, INTERSELECCION) agreeing:

o That C.C.C. is the legitimate owner of all rights to the audiovisual production of pornographic genre provisionally titled: NO APARECE EL NOMBRE.

o That INTERSELECCIÓN is interested in acquiring all rights to the aforementioned production, exclusively, in perpetuity and worldwide.

o That C.C.C. states that it assumes any responsibilities of any kind that may arise from claims by third parties, directly or indirectly related to the ownership of the rights to the aforementioned audiovisual production, for which INTERSELECCION declines any responsibility in any potential litigation that may arise.

o That C.C.C. transfers to INTERSELECCION all rights to the audiovisual production exclusively, in perpetuity and worldwide.

o That INTERSELECCION will pay the total purchase amount of ***CANTIDAD.1, and may market the audiovisual production in any manner it deems appropriate, even in parts...

o The parties formally and definitively waive their own jurisdiction if it were another, and submit to the competence and jurisdiction of the Courts and Tribunals of justice of Barcelona.

☐ A digitized copy of the ID of C.C.C. is attached.

☐ This document includes the following signed rights transfer texts:

o (...)

- A document named "****DOCUMENTO.4" with the following content: "(...)"

4) On 01/27/2023, a diligence carried out by this Agency on 01/13/2023 was incorporated into the inspection proceedings, in which the withdrawal of the content by KENAI in relation to the precautionary measure of 01/04/2023, linked to the content published at ***URL.1, is evidenced.

FIFTH: According to the report collected from the AXESOR tool, the entity KENAI MEDIA, S.L. is (...).

SIXTH: On 12/19/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against KENAI, in accordance with the provisions of articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of article 6.1 of the GDPR, classified in article 83.5.a) of the GDPR.

This initiation agreement, in accordance with the rules established in the LPACAP, was notified to KENAI on 12/20/2023, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On 12/27/2023, KENAI submitted, in a timely manner, a written statement in which it reiterated what was stated in the framework of the previous investigation proceedings (third point of

the section "Background") and provided the same documentation. Additionally, it attached the following documents to the written statement:

- Doc. "****DOCUMENTO.5". According to KENAI, this corresponds to a "certificate confirming that the scene initially named "****TITULO.1" is the same as the one subsequently named "(...)" that was acquired by the entity being claimed against.
- Doc. "****DOCUMENTO.6". Contract signed between C.C.C. and ***EMPRESA.1, on 06/26/2012, for the acquisition by the latter of "the audiovisual production of pornographic genre provisionally titled ***TITULO.1 (handwritten title)"

EIGHTH: On 11/20/2024, the instructor of the procedure issued a resolution proposal imposing a fine of €10,000 on KENAI, in accordance with the provisions of articles 63 and 64 of the LPACAP, for the infringement of article 6.1 of the GDPR, classified in article 83.5 of the GDPR, in which it was indicated that KENAI had a period of ten days to present allegations.

Additionally, KENAI was ordered that, pursuant to article 58.2.d) of the GDPR, it must prove the day after the notification of the sanctioning procedure resolution that it had adopted the necessary measures so that the image of the claimant would not be subject to treatment or dissemination unless one of the legitimizing bases of article 6 of the GDPR was present or, if applicable, had suspended the processing of personal data that was the subject of the claim by removing the content published at ***URL.1.

This resolution proposal, which was notified to KENAI in accordance with the rules established in the LPACAP, was received on 11/20/2024, as evidenced by the acknowledgment of receipt in the file.

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5/18

NINTH: On 26/11/2024, a written submission from KENAI was received by this Agency, in due time and form, in which it presented allegations against the proposed resolution. In summary, it stated that:

- KENAI is legitimized to publish the video subject to this sanctioning procedure under Article 6.1.b) of the GDPR, since the complainant signed a contract by which they not only transferred their image rights derived from the film "****TITLE.1" to C.C.C., but also authorized C.C.C. to transfer them to third parties.
- KENAI understands that this may be a civil matter.
- KENAI alleges that the complainant consented to the transfer of their image rights for the scene in question and, consequently, authorized the processing of their personal data.
- KENAI indicates that it has removed the pornographic scene titled (...), following the request from this Agency.
- KENAI considers that, according to the provisions of the GDPR, the maximum penalty to be imposed would amount to ***AMOUNT.2, given that its turnover in the fiscal year 2022 was ***AMOUNT.3. It attaches a certificate proving its registration.

KENAI provides the following document:

- Doc. "Deposit accounts 2022". Its content includes, among other information, the following:

COMMERCIAL REGISTER OF BARCELONA.

ENTRY NUMBER: 99/154963 DATE: 31/07/2023 JOURNAL: 1278 ENTRY: 2988

KENAI MEDIA S.L. NIF B67684514

Registration data: It has deposited the annual accounts corresponding to the fiscal year closed on 31/12/2022 with the file number 43126339

Volume 48034 Page 98 Sheet number B-570161

In view of all that has transpired, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

FIRST: On 03/01/2023, the pornographic video subject to the complaint was available at the following electronic address: ***URL.1. The description was as follows:

"(...)".

SECOND: Following the agreement to adopt a provisional measure for withdrawal, dated 04/01/2023, issued to KENAI, by 13/01/2023, the video in question had been removed from the aforementioned electronic address.

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6/18

THIRD: On 12/01/2023, KENAI submitted a written document to this Agency providing the following documentation:

- Document “***DOCUMENT.1”. It includes a digitized copy of the ID of B.B.B. and a second page with the following content: “(...)”, along with the handwritten signature.
- Document “***DOCUMENT.2”. It includes a digitized copy of the ID of A.A.A. (complainant) and a text with the following content: “(...)”, along with the handwritten signature.
- Document “***DOCUMENT.3” with the following content:
 - ☐ A contract, dated 26/06/2012 and signed by hand, entered into between C.C.C. (***NIF.1) and D.D.D., representing INTERSELECCIÓN, agreeing that:
 - o C.C.C. is the legitimate owner of all rights to the pornographic audiovisual production provisionally titled: (blank).
 - o INTERSELECCIÓN is interested in acquiring all rights to the aforementioned production, exclusively, in perpetuity and worldwide.
 - o C.C.C. states that it assumes any responsibilities of any kind that may arise from claims by third parties, directly or indirectly related to the ownership of the rights to the aforementioned audiovisual production, for which INTERSELECCIÓN declines any responsibility in potential litigations that may arise.
 - o C.C.C. transfers to INTERSELECCIÓN all rights to the audiovisual production exclusively, in perpetuity and worldwide.
 - o INTERSELECCIÓN will pay the total purchase price amounting to ***AMOUNT.1, and may market the audiovisual production as it sees fit, even in installments (...).
 - o The parties formally and definitively waive their own jurisdiction if it were to be another, and submit to the competence and jurisdiction of the Courts and Tribunals of justice of Barcelona.
 - ☐ A digitized copy of the ID of C.C.C. is attached.
 - ☐ This document includes the following texts of rights transfer, dated 21/06/2012 and manually signed:
 - o (...)

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7/18

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Document “***DOCUMENTO.4”, dated 22/09/2022 and with handwritten signatures, containing the following:

☐

“(...)”

FOURTH: On 27/12/2023, in the written allegations to the initiation agreement of the present sanctioning procedure, KENAI submits:

-

Doc. “***DOCUMENTO.5”. According to KENAI, this corresponds to a “certificate attesting that the scene initially referred to as “***TITULO.1” is the same as that subsequently referred to as “(...)” which was acquired by the entity being claimed against.

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Doc. “***DOCUMENTO.6”. Contract signed between C.C.C. and ***EMPRESA.1, dated 26/06/2012, for the acquisition by the latter of “the audiovisual production of pornographic genre provisionally titled ***TITULO.1 (handwritten title)”.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary issues

Article 4 “Definitions” of the GDPR defines the following terms for the purposes of the Regulation:

1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;

7) ‘data controller’ or ‘controller’: the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;

11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them.”

In the present case, pursuant to Article 4.1 of the GDPR, the physical image of a person is personal data. Therefore, the publication of an adult content video in which the face and naked body of the claiming party are visible constitutes processing of personal data, as it allows for their identification or makes them identifiable.

KENAI carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. The Privacy Policy of the portal ***URL.8 lists its contact details as the data controller of the personal data processed therein.

III

Allegations made

In relation to the allegations made regarding the proposed resolution of the present sanctioning procedure, responses are provided in the order presented by KENAI:

KENAI claims that it was authorized to publish the video subject to the present sanctioning procedure under Article 6.1.b) of the GDPR, since, following a contract assignment, it was not necessary for the claiming party to sign the contract of assignment of rights that KENAI entered into with INTERSELECCIÓN. The claiming party had already signed a contract under which they not only assigned their image rights derived from the film “***TITULO.1” to C.C.C., but also authorized it to assign them to third parties. Thus, C.C.C. entered into a contract with INTERSELECCIÓN, and this entity subsequently with KENAI.

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9/18

However, it adds that “The essence of this procedure is more of a civil matter than one pertaining to data protection regulations; if the assignment of a contract agreed upon by the parties is possible, it is clear that my client has not committed any infringement in the processing of the complainant's data; if such assignment is not possible, my client has committed an infringement by processing data obtained unlawfully.”

In this regard, this Agency wishes to point out that within its competence, it does not determine the validity of a contract, but it does analyze whether or not there is a legitimate basis that supports the processing of personal data carried out, in this case, by KENAI.

Having stated the above, it should be indicated that the document provided by KENAI in which INTERSELECCIÓN would certify that the content of the pornographic scene titled “***TITLE.1” is the same as that of “(...)” does not prove that the assertion made by the latter corresponds to reality. Moreover, even if it were true, this Agency reiterates that for the assumption provided in Article 6.1.b) of the GDPR to apply, the data subject, whose personal data is being processed, must be a party to the contract. In this case, it has not been established that the complaining party is part of the contract signed between INTERSELECCIÓN and KENAI in 2022 or, at least, that (...) has signed any contract with KENAI.

The Agency does not assess the validity of the contract carried out between INTERSELECCIÓN and KENAI; it only analyzes whether the processing of the image of (...) carried out by KENAI can be based on any legitimate basis under Article 6.1 of the GDPR, as it must not be forgotten that the image of a natural person is a piece of personal data and that the protection afforded by the fundamental right to data protection extends to all personal data of a natural person, whether known to third parties or not.

In the present case, the complaining party would have assigned the image rights in the film titled “***TITLE.1” in favor of C.C.C., to whom they would have also authorized to sell them to third parties, which C.C.C. did in favor of INTERSELECCIÓN. However, INTERSELECCIÓN assigned the image rights of the complaining party to KENAI, without the complaining party being a party to such contract and without having authorized INTERSELECCIÓN to carry out such sale. Therefore, the processing carried out by KENAI in this case cannot be based on the legitimate basis provided in Article 6.1.b) of the GDPR, as it expressly requires that the processing be necessary for the execution of a contract in which the data subject is a party, which does not occur in this case.

KENAI considers that, in light of the document signed by the complaining party in 2012, there is no doubt that (...) gave their consent to the assignment of their image rights for the scene in question. Therefore, the consent to the assignment of their image rights entails authorization for the processing of their personal data.

In this regard, this Agency reiterates that the processing carried out by KENAI is also not covered by the consent of (...), as the statement that

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28001 – Madrid
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10/18

The signed document (...) does not meet the requirements set forth in Article 4.11 of the GDPR for the consent to be valid.

Finally, KENAI emphasizes having removed the pornographic scene titled (...), following the request of this Agency. It adds that, “Article 83.2 of the GDPR establishes that in the case of infringements derived from Article 6 of the GDPR, when it concerns a company, the amount of the sanction shall not exceed 4% of the annual turnover of the previous financial year” and, therefore, considering that its turnover in the year 2022 was ***AMOUNT.3, the maximum sanction to be imposed would amount to ***AMOUNT.2. It attaches a certificate proving its registration.

In this regard, this Agency wishes to point out that the applicable section of Article 83 of the GDPR in

this case is the fifth, not the second. That said, it should be noted that KENAI, in the excerpt from Article 83 of the GDPR that it provides, omits a very relevant fact, which is that when the infringing party is a company, the amount of the administrative fine cannot exceed €20,000,000 or the amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount. Therefore, the administrative fine of €10,000 proposed to be imposed on KENAI is within legal limits, since the maximum to be considered in this case is €20 million, as it is higher than the amount resulting from applying 4% to KENAI's turnover in the year 2022.

For the reasons stated, the present allegations are dismissed.

IV

Legality of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The circumstances that allow the processing of personal data to be considered lawful are enumerated in Article 6.1 of the GDPR:

1. The processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

Furthermore, Recital 40 of the aforementioned GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, whether in this Regulation or under another Union or Member State law to which this Regulation applies, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of executing a contract to which the data subject is a party or for taking steps at the request of the data subject prior to entering into a contract."

In the present case, as indicated in the Established Facts, on 21/06/2012 the claimant signed a declaration by which they ceded their image rights in the film "****TITLE.1" to the producer C.C.C. and authorized them to sell them to third parties. Subsequently, the entity INTERSELECCIÓN entered into a contract with this producer by which it acquired all rights to the pornographic audiovisual production titled "****TITLE.1".

For its part, on 22/09/2022, KENAI acquired from INTERSELECCIÓN the exploitation rights of the pornographic scene "(...)" included in the film titled "(...)". The video in question was published at ***URL.8, specifically at the URL ***URL.1, under the title "(...)", and with the following description: "(...)". In the screenshot of the video provided by the claimant, the face and naked body of the claimant can clearly be seen while engaging in sexual intercourse (...).

While it is true that KENAI submitted along with the written allegations to the initiation agreement a document in which INTERSELECCIÓN asserts that the content of the aforementioned pornographic scenes is the same, it has not been proven that any of the legitimizing bases of Article 6 of the GDPR

apply to the processing of the image of the claimant by KENAI.

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12/18

It is the claimed party that must prove that the processing of personal data it carries out is lawful. KENAI cannot base the processing of the image of (...) on the existence of the consent of (...). For consent to be considered validly given, it is necessary that the elements outlined in Article 4.11 of the GDPR are present, that is, that the consent consists of a manifestation of free, specific, informed, and unequivocal will by which the data subject accepts, either through a statement or a clear affirmative action, the processing of personal data concerning them.

As clarified by the National Court in its ruling of February 14, 2023, rec. 463/2020, “the data protection regulations currently exclude tacit consent and require that it be explicit. The Chamber therefore considers that only express consent will be valid, which must be granted through a clear affirmative act that evidences a declaration of free, specific, informed, and unequivocal will of the holder of the personal data, in the sense that there is no slightest doubt that there has been a manifest will on the part of the affected party.” (the emphasis is ours).

In this case, the claiming party would have signed a document with the following content: I SAY, (...). In Madrid on the date 21/06 of 2012.

However, this statement does not meet the requirements that a valid consent must fulfill.

Recital 42 of the GDPR states that “(...) in the context of a written declaration made on another matter, there must be guarantees that the data subject is aware of the fact that they are giving their consent and to what extent they are doing so. (...) Guarantees that cannot be asserted to exist in this case, as (...) is not even made aware that the assignment of image rights implies consent for the processing of their personal data, so (...) was not aware that they were giving their consent for the processing of their personal data.

In particular, consent must be specific, and the data subject must have given their consent for one or several specific purposes for the processing of the data to be based on Article 6.1.a) of the GDPR. As stated by the European Data Protection Board (hereinafter EDPB) in the “Guidelines 5/2020 on consent under Regulation (EU) 2016/679, version 1.1”, “The requirement that consent must be ‘specific’ aims to ensure a level of control and transparency for the data subject.” It thus considers that to comply with the character of ‘specific’, the data controller must apply:

- i the specification of the purpose as a safeguard against misuse,
- ii the dissociation in consent requests, and
- iii a clear separation between the information related to obtaining consent for data processing activities and the information related to other matters. (paragraph 55)

In relation to these requirements, the EDPB states that:

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13/18

“56 Ad. i): In accordance with Article 5, paragraph 1, letter b) of the GDPR, the obtaining of valid consent is always preceded by the determination of a specific, explicit, and legitimate purpose for the intended processing activity. The necessity of specific consent in conjunction with the notion of purpose limitation as stated in Article 5, paragraph 1, letter b), serves as a safeguard against the gradual expansion or blurring of the purposes for which data processing is carried out once a data subject has given their authorization for the initial collection of data. This phenomenon, also known as purpose drift, poses a risk to data subjects as it may lead to unforeseen use of personal data by the data controller or third parties and to a loss of control by the data subject.

57 If the data controller relies on Article 6, paragraph 1, letter a), data subjects must always give their consent for a specific purpose for the processing of data. In line with the concept of purpose limitation,

with Article 5, paragraph 1, letter b), and with the recitals, consent may encompass different operations, provided that such operations have the same purpose. It goes without saying that specific consent can only be obtained when data subjects are expressly informed about the intended purposes for the use of their data.

58. Without prejudice to the provisions on the compatibility of purposes, consent must be specific for each purpose. Data subjects will give their consent understanding that they have control over their data and that it will only be processed for those specific purposes. If a controller processes data based on consent and also wishes to process that data for another purpose, they must obtain consent for that other purpose, unless there is another legal basis that better reflects the situation.

(...)

60. Ad. ii): Consent mechanisms must not only be separated in order to comply with the requirement of "freely given" consent, but they must also comply with the requirement of "specific" consent. This means that a data controller seeking consent for several distinct purposes must provide the option to opt for each purpose, so that users can give specific consent for specific purposes.

61. Ad. iii): Finally, data controllers must provide, with each separate request for consent, specific information about the data that will be processed for each purpose, so that data subjects are aware of the implications of the different options available to them. This allows data subjects to give specific consent. This issue overlaps with the requirement for controllers to provide clear information, as previously outlined in section 3.3."

Well, it is evident in this case that specific consent from (...) was not obtained to authorize the processing of their data. (...) was not provided with information about the specific, explicit, and legitimate purpose for which their data was to be processed.

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14/18

your personal data, so that they were aware of the specific use to which their personal data would be destined, in order to avoid unwanted uses.

Neither was informed consent obtained from (...), as for consent to be informed, the data subject must at least know the identity of the data controller and the purposes of the processing to which their personal data is destined (consideration 42 GDPR).

The EDPB explains in the cited Guidelines that "the requirement of transparency is one of the fundamental principles, closely related to the principles of fairness and lawfulness. Providing information to data subjects before obtaining their consent is essential for them to make informed decisions, understand what they are authorizing, and, for example, exercise their right to withdraw consent. If the controller does not provide accessible information, the user's control will be illusory and consent will not constitute a valid basis for the processing of data" (paragraph 62).

And in this case, that information was lacking. The document provided by KENAI does not contain any information related to the processing of personal data. Therefore, no information was provided to (...) regarding the use of their personal data, nor the purposes, nor the assignees, nor the use that those assignees would make of their data, nor how to exercise their rights. Not even the claiming party was informed of their right to withdraw consent.

Article 7, paragraph 3, of the GDPR establishes that the data controller must ensure that the data subject can withdraw their consent at any time and that it will be as easy to withdraw it as it was to give it.

The EDPB interprets on this matter that "the controller must inform the data subject of the right to withdraw consent before the data subject gives such consent. Furthermore, as part of the obligation of transparency, the controller must inform data subjects about how to exercise their rights" and adds that "the requirement that the withdrawal of consent be easy is described in the GDPR as a necessary aspect for valid consent. If the right to withdraw does not meet the requirements of the GDPR, then the mechanism of the data controller does not comply with the GDPR."

In summary, the responding party has not obtained the consent of (...) in accordance with the GDPR.

Finally, it must be reiterated that the processing of the data of the claiming party cannot be based on the legal basis of Article 6.1(b) of the GDPR, as it is necessary for the data subject, whose personal data is being processed, to be a party to the contract. And in this case, as indicated, it would be a contract entered into without the intervention of the claiming party, which also causes harm to their rights and freedoms.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

15/18

constitute an infringement, attributable to KENAI, for violation of Article 6.1 of the GDPR.

V

Classification and qualification of the infringement of Article 6.1 of the GDPR

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the statute of limitations, Article 72.1 “Very serious infringements” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met; (...)”

VI

Sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

The following circumstances are taken into account:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the level of damage and harm suffered; KENAI publicly disseminated a video of sexual content featuring the face and body

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

16/18

nude of the claiming party, without their consent, allowing their identification (Article 83.2.a of the GDPR).

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The type of data processed, the image of the claiming party in a video of sexual content (Article 83.2.g of the GDPR).

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The connection of the infringer's activity with the processing of personal data; KENAI is an entity whose activity involves continuous processing of personal data, such as images (Article 76.2.b of the LOPDGDD).

The balance of the circumstances considered allows for a fine of €10,000.00 (ten thousand euros) for the infringement of Article 6.1 of the GDPR.

VII

Adoption of measures

In accordance with the provisions of the aforementioned Article 58.2.d of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...", KENAI is required to certify by the day following the notification of the sanctioning procedure resolution:

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That it has adopted the necessary measures so that the image of the claiming party is not subject to processing or dissemination unless one of the legal bases of Article 6 of the GDPR applies, or, if applicable, that it has suspended the processing of personal data subject to the claim by removing the content published at ***URL.1.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on KENAI MEDIA, S.L., with NIF B67684514, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of €10,000.00 (ten thousand euros).

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

17/18

SECOND: TO ORDER KENAI MEDIA, S.L., with NIF B67684514, that pursuant to Article 58.2.d) of the GDPR, within the timeframe of the day following the notification of the sanctioning procedure resolution, it certifies:

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That it has adopted the necessary measures so that the image of the claiming party is not subject to processing or dissemination unless one of the legal bases of Article 6 of the GDPR applies, or, if applicable, that it has suspended the processing of personal data subject to the claim by removing the content published at ***URL.1.

THIRD: TO NOTIFY this resolution to KENAI MEDIA, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that

appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. In the absence of this, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
18/18

the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not receive knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí
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